

Court No. - 39

Case :- WRIT - C No. - 3081 of 2025

Petitioner :- Punit Kumar Srivastava

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Akhilesh Kumar Vishwakarma, Sushil Chandra Srivastava

Counsel for Respondent :- C.S.C., Narendra Kumar Tiwari

Hon'ble Siddhartha Varma, J.

Hon'ble Dr. Yogendra Kumar Srivastava, J.

Learned counsel for the petitioner prays for and is granted two weeks' time for filing the supplementary affidavit.

Put up this case on 20.03.2025 as fresh.

Order Date :- 27.2.2025

M.S. Ansari

(Dr. Y.K. Srivastava, J.) (Siddhartha Varma, J.)

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Hon'ble Siddhartha Varma, J.

Hon'ble Dr. Yogendra Kumar Srivastava, J.

1. On the request of Sri Sushil Chandra Srivastava, learned counsel for the petitioner, list this case on 09.04.2025 as fresh.
2. Supplementary affidavit be filed after due service on the counsel for the respondents.

Order Date :- 20.3.2025

Shahroz

(Dr. Y.K. Srivastava, J.) (Siddhartha Varma, J.)

Court No. - 40

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Counsel for Petitioner :- Akhilesh Kumar Vishwakarma, Sushil Chandra Srivastava

Counsel for Respondent :- C.S.C., Narendra Kumar Tiwari

Hon'ble Shekhar B. Saraf, J.

Hon'ble Dr. Yogendra Kumar Srivastava, J.

1. Heard learned counsel appearing on behalf of the parties.
2. This is a writ petition under Article 226 of the Constitution of India wherein the writ petitioner has prayed for the following reliefs:-

"i) Issue a writ, order or direction in the nature of Mandamus commanding the respondent authority to consider the case of petitioner with regard to one time settlement pursuant to notice dated 14.12.2024 (contained in annexure no.7).

ii) Issue a writ, order or direction in the nature of mandamus commanding the opposite parties to provide the meter reading of petitioner electricity pertain to January, 2015 to January, 2019 on the basis of which bills are coming without providing the same.

iii) Issue a writ, order or direction in the nature of Mandamus commanding the opposite parties to restore the Electricity Connection of petitioner with immediate effect as the petitioner is living in darkness as also the children of the petitioner are studying.

..."

3. Upon considering the submissions of learned counsel appearing on behalf of the parties and perusing the documents, we are of the view that the petitioner should deposit a sum of Rs.75,000/- with the Electricity Department within a period of seven days from date. If such an amount is deposited by the petitioner within the aforesaid period, the Electricity Department shall reconnect the electricity of the petitioner forthwith. The petitioner is also directed to file an application/objection under Clause 6.5 of the Uttar Pradesh Electricity Supply Code, 2005 (hereinafter referred to as 'the Code') within a period of seven days from date. In the

event such an application/objection is filed by the petitioner within the aforesaid period, the authority concerned shall decide the same in accordance with law within a period of six weeks from the date of filing of such application/objection before it, after granting an opportunity of hearing to the petitioner.

4. We make it clear that after passing of the order under Clause 6.5 of the Code by the authority concerned, the petitioner shall deposit the dues as per the order passed and in the event of default, the Electricity Department shall be at liberty to proceed against the petitioner in accordance with law. We further make it clear that the amount of Rs.75,000/- deposited by the petitioner under this order, shall be adjusted in the amount to be deposited by the petitioner after the order passed under Clause 6.5 of the Code.

5. With the aforesaid directions, the writ petition is disposed of.

Order Date :- 9.4.2025

Rakesh

(Dr. Y.K. Srivastava, J.) (Shekhar B. Saraf, J.)